3931

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of JENNY FABER, residing in Austria, whom, after investigation, he did determine to be an enemy within the purview of said Act as amended, which said real estate is described as follows, to-wit:

> Lot No. Twelve (12), Block One hundred fifty-six (156), Section One (1), in the Borough of Manhattan, City and County of New York and State of New York, improved by premises known as Nos. 541, 543, 545 and 547 Pearl Street.
>
> And also Lot No. Fifty-five (55), Block Four hundred sixty-five (465), Section Two (2), in the Borough of Manhattan, City and County of New York and State of New York, improved by premises known as Nos. 145 and 147 Second Avenue.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian;

(b) Investigation has shown it to be impossible to sell the property at a better price;

(c) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided.

CALVIN COOLIDGE

THE WHITE HOUSE,
November 22, 1923.

[No. 3931.]

GOVERNMENT PRINTING OFFICE